

EMPLOYER'S FIRST REPORT OF INJURY OR DISEASE

Fatal Injuries: Employers subject to ch.102, Wis. Stats., must report injuries resulting in death to the Department and to their insurance carrier, if insured, within one day after the death of the employee.

Non-Fatal Injuries: If the injury or occupational illness results in disability beyond the three-day waiting period, the employer, if insured, must notify its insurance carrier within 7 days after the injury or beginning of disability. Medical-only claims are to be reported to the insurance carrier only, not the Department.

Electronic Reporting Requirement: All work-related injuries and illnesses resulting in compensable lost time, with the exception of fatalities, must be reported electronically to the Department via EDI or Internet by the insurance carrier or self-insured employer within 14 days of the date of injury or beginning of disability. Employer may fax claims for fatal injuries to (608) 267-0394.

**Department of Workforce Development
Worker's Compensation Division**
201 E. Washington Ave.
P.O. Box 7901
Madison, WI 53707
Imaging Server Fax: (608) 260-2503
Telephone: (608) 266-1340
<https://dwd.wisconsin.gov/wc>
e-mail: DWDDWC@dwd.wisconsin.gov

*Provision of your Social Security Number (SSN) is voluntary. Failure to provide it may result in an information processing delay.

The Department of Workforce Development (DWD) administers the Worker's Compensation Act, Chapter 102 Wis. Stats. The purpose of this form is to assist with the procurement of information related to or required by Chapter 102. Completion of this form is voluntary and failure to complete said form may result in a delay in the administration of Chapter 102. DWD may use the personally identifiable information (PII) it obtains from you on this form for purposes other than those for which it is being collected.

(Please read the instructions on page 2 for completing this form)

EMPLOYEE	Employee Name (First, Middle, Last) <i>Emily Anne Johnson</i>		Social Security Number* <i>553-23-7412</i>		Sex ☐ M ☒ F	Employee Home Telephone No. <i>(414) 555-0127</i>	
	Employee Street Address <i>1248 S Kinnickinnic Ave, Apt 3B</i>		City <i>Milwaukee</i>	State <i>WI</i>	Zip Code <i>53209</i>	Occupation <i>Marketing Coordinator</i>	
	Birthdate <i>1990-06-17</i>	Date of Hire <i>2022-03-21</i>	County and State Where Accident or Exposure Occurred? <i>Milwaukee County, Wisconsin</i>				
EMPLOYER	Employer Name <i>Harborview Marketing LLC</i>		WI Unemployment Ins. Acct No. <i>POL 987654321</i>	Self-Insured? ☐ Yes ☒ No		Nature of Business (Specific Product) <i>Marketing and advertising services</i>	
	Employer Mailing Address <i>412 E Mason St, Suite 700</i>		City <i>Milwaukee</i>	State <i>WI</i>	Zip Code <i>53202</i>	Employer FEIN <i>47-8123456</i>	
	Name of Worker's Compensation Insurance Co. or Self-Insured Employer <i>Midwest Mutual Insurance Co.</i>						Insurer FEIN <i>39-8765432</i>
WAGE INFORMATION	Name and Address of Third Party Administrator (TPA) Used by the Insurance Company or Self-Insured Employer <i>North Shore Claims Services, 500 W Silver Spring Dr, Suite 240, Glendale, WI 53217</i>						
	Wage at Time of Injury \$ <i>26.50</i>		Specify per hr., wk., mo., yr., etc. Per: <i>hr</i>		In Addition to Wages, Check Box(es) if Employee Received: ☐ Meals ☐ Room ☐ Tips		
	No. of Meals/wk. No. of Days/wk. Avg. Weekly Amt. \$						
	Is Worker Paid for Overtime? ☒ Yes ☐ No If Yes, After How Many Hours of Work Per Week? <i>40</i>						
	For the 52 Week Period Prior to the Week the Injury Occurred, Report Below the Number of Weeks Worked in the Same Kind of Work, and the Total Wages, Salary, Commission and Bonus or Premium Earned for Such Weeks.						
	No. of Weeks: <i>50</i>		Gross Amount Excluding Tips: \$ <i>53000</i>		If Piece-Work, No. of Hrs. Excluding Overtime:		
	Employee's Usual Work Schedule When Injured:		Start Time <i>8:30</i> ☒ AM ☐ PM	Hours Per Day <i>8</i>	Hours Per Week <i>40</i>	Days Per Week <i>5</i>	
	Employer's Usual Full-Time Schedule for This Type of Work at Time of Employee's Injury:			<i>8</i>	<i>40</i>	<i>5</i>	
	Part-Time Employment Information:		Are there Other Part-Time Workers Doing the Same Work With the Same Schedule? ☐ Yes ☒ No If Yes, how many?		Number of Full-Time Employees Doing The Same Type Of Work:		
	Injury Date <i>2024-08-14</i>	Time of Injury <i>10:35</i> ☒ AM ☐ PM	Last Day Worked <i>2024-08-14</i>	Date Employer Notified <i>2024-08-14</i>	☒ Date Returned to Work <i>2024-08-19</i>		
☐ Estimated Date of Return							
INJURY INFORMATION	Did Injury Cause Death? ☐ Yes ☒ No		Date of Death	Was This a Lost Time or Other Compensable Injury? ☒ Yes ☐ No		Did Injury Occur Because of: ☐ Substance Abuse ☐ Failure to Use Safety Devices ☐ Failure to Obey Rules	
	Was Employee Treated in an Emergency Room? ☐ Yes ☒ No Was Employee Hospitalized Overnight as an In-Patient? ☐ Yes ☒ No						
	Name and Address of Treating Practitioner and Hospital: <i>Dr. Laura Chen, Aurora Urgent Care, 215 N Water St, Milwaukee, WI 53202</i>						
	Case Number from the OSHA Log: <i>2024-017</i>						
	Injury Description - Describe Activities of Employee When Injury or Illness Occurred and What Tools, Machinery, Objects, Chemicals, Etc. Were Involved. <i>Employee was lifting and moving boxes of printed brochures (approximately 35 lbs each) from a waist-high storage rack to a rolling cart for an off-site client meeting. A box, metal storage rack, and a two-shelf cart were involved. While repositioning a box onto the cart, employee twisted at the waist to avoid a coworker passing behind. While turning to set a 35-lb box onto a cart, employee rotated her torso without moving her feet, resulting in an acute twisting motion and immediate sharp pain in the lower back. No slip or fall occurred; injury was due to overexertion and awkward while lifting.</i>						
What Happened to Cause This Injury or Illness? (Describe How The Injury Occurred)							
What Was The Injury or Illness? (State the Part of Body Affected and How It Was Affected)							
<i>Lumbar strain to the lower back musculature with localized pain, muscle spasm, and limited range of motion. No radiating numbness reported. Treated conservatively with rest, NSAIDs, and light-duty recommendation.</i>							
Report Prepared By <i>Michael Torres</i>		Work Phone Number <i>(414) 555-0198</i>		Position <i>HR Manager</i>		Date Signed	

EMPLOYER AND INSURANCE CARRIER INSTRUCTIONS

The employer must complete all relevant sections on this form and submit it to the employer's worker's compensation insurance carrier or third party claim administrator within seven (7) days after the date of a work-related injury which causes permanent or temporary disability resulting in compensation for lost time. The employer's insurance carrier or the third-party claim's administrator may request that this form also be used to immediately report any injury requiring medical treatment, even though it does not involve lost work time.

For any work injury resulting in a **fatality**, the employer must also submit this form directly to the Department of Workforce Development **within 24 hours of the fatality**.

An employer exempt from the duty to insure under s. 102.28, Wis. Stats., and an insurance carrier administering claims for an insured employer are required to submit this form to the Department of Workforce Development within 14 days of the date of work injury.

MANDATORY INFORMATION

In order to accurately administer claims, each of the following sections of this form must be completed. The First Report of Injury will be returned to the sender if the mandatory information is not provided.

Employee Section: Provide all requested information to identify the injured employee. If an employee has multiple dates of employment, the "Date of Hire" is the date the employee was hired for the job on which he or she was injured.

Employer Section: Provide all requested information to identify the injured worker's employer at the time of injury. Provide the name and Federal Employer Identification Number (FEIN) for the insurance carrier or self-insured employer responsible for the worker's compensation expenses for this injury. Also identify the third party claim administrator, if one is used for this claim.

Wage Information Section: Provide the information requested regarding the injured employee's wage and hours worked for the job being performed at the time of injury.

Injury Information Section: Provide information regarding the date and time of injury. Provide a detailed description of the injury, including part of the body injured, the specific nature of the injury (i.e., fracture, strain, concussion, burn, etc.) and the use of any objects or tools (i.e., saw, ladder, vehicle, etc.) that may have caused the injury. Provide the name of the person preparing this report and the telephone number at which they may be reached, if additional information is needed. This form was designed to include information required by OSHA on form 301. If this section is completed and retained, the employer will not have to complete the OSHA 301 form.